Form 4 Declaration of Status according to US Tax Principles (Individuals)

HSBC Private Banking

HSBC Private Banking (C.I.) a division of HSBC Bank plc, Guernsey Branch

To be completed by personal account holders, individual beneficial owners, third party account holders, power of attorneys, settlors, trustees or beneficiaries of trusts (on first distribution), founders of private foundations or any type of non-transparent structure. Please note that in addition to this form, for all accounts holding US securities or with US indicia, a correctly completed W series IRS form must also be obtained from all individuals opening the account.

Due to US withholding tax requirements and in order to comply with HSBC Private Banking policy with regard to the correct identification of the status and qualification of clients as a US or non-US person, I make the following declaration;

I, the undersigned, certify that I am a citizen of _____ and that my permanent residential address is:

_____

_____

_____

_____

I certify that my responses to the following questions are given to the best of my knowledge and belief:

1.	Do you hold a United States passport?	☐ Yes	☐ No
2.	Are you a US citizen (sole or dual citizenship)?	☐ Yes	☐ No
3.	Were you born in the US or in the US territories of Guam, Puerto Rico or the U.S. Virgin Islands? Note: If, notwithstanding being born in the US or above named territories, you do not believe yourself to be a US person for US tax purposes, please provide both a W-8BEN and a copy of your "Certificate of Loss of US nationality of the United States" formally endorsed by the US State Department.	☐ Yes	☐ No
4.	Do you have a current or an expired US green card (Lawful Permanent Resident status)? Note: If you hold a green card, please provide a copy of Form I-407 as evidence that the card/lawful permanent residence status has been surrendered.	☐ Yes	☐ No
5.	Do you hold any other US immigration visa (other than an ESTA)? If you have answered yes to the above, please give details in the below box of the relevant visa	☐ Yes	☐ No
6.	Do you currently live in the US or have you been present in the US for more than 30 days in the last 12 months? If you have answered yes, please confirm the amount of time you have spent in the US in the last 12 months	☐ Yes	☐ No

7. Do you have any address in the US? i.e. mailing, residential or business address ☐ Yes ☐ No

If you have answered yes, please confirm the nature of the address

8. Are you resident in the US for any US tax purpose? ☐ Yes ☐ No

In making this statement, I have considered US tax residency principles including the "substantial presence test" (as outlined below).

Substantial Presence Test:

A person will be considered a U.S. resident for US Federal tax purposes under the "substantial presence test" for the calendar year if:

- Physically present in the U.S. for at least 31 days during the current calendar year, and
- Physically present in the U.S. on at least 183 days during the 3 year period that includes the current calendar year and the 2 calendar years immediately before that, counting:

  a. All the days the individual was present in the current year, and

  b. 1/3 of the days the individual was present in the 1st year before the current year, and

  c. 1/6 of the days the individual was present in the 2nd year before the current year.

Nb. Exclusions apply in certain circumstances – refer to the IRS website if you believe this may be the case for you.

9. Are you a US person for US tax purposes for any other reason (i.e., dual residency, spouse filing jointly, continued filing following relinquishment of citizenship or green card etc.)? ☐ Yes ☐ No

Note: The following question applies if the form is being filled specific to account(s). If the form is being filled specific to an individual, the following question does not apply.

☐ I confirm that I am the beneficial owner according to US tax principles of the assets and income held in the account(s) to which this declaration relates.

Or

☐ I am not the beneficial owner, according to US tax principles, of the assets and income held in the account(s) to which this declaration relates.

I have provided to you, or will provide to you on request, any other documentation reasonably required to support my declaration as to my status under US tax principles and will refresh such documentation upon your request.

I undertake to notify HSBC Private Banking (C.I.) immediately should my status according to US tax principles change. I certify that the above information is true and correct.

Signatory

Date DD | MM | YYYY

Print name

Place

HSBC Private Banking (C.I.), a division of HSBC Bank plc, Guernsey Branch
Arnold House, St. Julians's Avenue
St Peter Port, Guernsey
GY1 13NF, Channel Islands
T. +44 (0) 1481 759000 F. +44 (0) 1481 759020

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